JUSTICE GORSUCH, concurring in the judgment.

I agree with the Court's judgment that the government's examination of Okello Chatrie's Location History data amounted to a search for purposes of the Fourth Amendment. But respectfully, I would reach that conclusion by a different route.

I

To decide whether a Fourth Amendment search took place in this case, the Court once again invokes a test first advanced in a solo concurrence in *Katz* v. *United States*, 389 U. S. 347 (1967). Under that test, a search occurs when the government intrudes on an "expectation of privacy" that "society is prepared to recognize as 'reasonable.'" *Id.*, at 361 (Harlan, J., concurring).

If *Katz* has become a familiar feature of our law, it seems to me no more persuasive for it. Consider just a few of its problems, beginning with this: It has no basis in the Constitution's text or history. The Fourth Amendment's protections do not depend on "the breach of some abstract 'expectation of privacy' whose contours are left to the judicial imagination." *Carpenter* v. *United States*, 585 U. S. 296, 391 (2018) (GORSUCH, J., dissenting). Instead, the Fourth Amendment speaks in more concrete terms, protecting an individual's person, house, papers, and effects from unreasonable searches and seizures. *Ibid.* No surprise, then, that it's hard to find anything like the *Katz* test in the law leading up to the Fourth Amendment's adoption—or anything much like it in this Court's jurisprudence before the 1960s. See *Carpenter*, 585 U. S., at 391–392 (GORSUCH, J., dissenting).

Even if I could overlook that problem with *Katz*, I still wouldn't know how to apply it. As the Court has candidly admitted, it has never been able to identify a "single rubric" that might "definitively resolv[e] which expectations of privacy are entitled to protection." *Carpenter*, 585 U. S., at 304 (majority opinion). Maybe *Katz* poses an empirical question, tagging reasonable expectations of privacy to those

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privacy expectations "people *actually* have." *Carpenter*, 585 U. S., at 392 (GORSUCH, J., dissenting). Or maybe the question is a normative one, asking what expectations reasonable people "*should* . . . have." *Ibid.* In truth, nobody knows and, either way, this Court is the wrong body for the task. We aren't equipped to make empirical assessments about what most Americans think. Nor is it our job to enforce our own normative judgments, as opposed to those embodied in the Constitution and laws. *Id.*, at 392–394.

If this weren't trouble enough, we've also adorned *Katz* with an equally indefensible qualification called the third party doctrine. Under its terms, the Court has held, an individual maintains no "reasonable expectation of privacy" in information he shares with others. Accordingly, the government may freely search a person's papers and effects without triggering any Fourth Amendment scrutiny so long as they are entrusted to the care of someone else. See *Smith* v. *Maryland*, 442 U. S. 735, 743–744 (1979); *United States* v. *Miller*, 425 U. S. 435, 442–443 (1976).

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Much as with *Katz* itself, this Court has never offered a persuasive justification for its offshoot. *Carpenter*, 585 U. S., at 389–390 (GORSUCH, J., dissenting). Nor do I see how it might. Do we seriously mean to suggest that most Americans think they have no "reasonable expectation of privacy" in records held for them by their banks or pharmacists or doctors or technology companies? If not, on what authority might we rule that the American people should not reasonably expect privacy in materials like those? Really, the third party doctrine amounts to little more than a "doubtful application of *Katz* that lets the government search almost whatever it wants whenever it wants." *Id.*, at 391.

As it did eight years ago in *Carpenter*, the Court today largely ignores these problems. It simply declares that Mr. Chatrie enjoyed a reasonable expectation of privacy in his Location History because authorities could have used it

to create "a virtual panopticon." *Ante*, at 630. And it tells us that the third party doctrine does not apply to this case because Mr. Chatrie did "'not truly shar[e]'" his Location History with Google. *Ante*, at 634 (quoting *Carpenter*, 585 U. S., at 315 (majority opinion)).

Count me unpersuaded. Why does tracking Mr. Chatrie's movements digitally over an hour or two invade his reasonable expectation of privacy when an officer tailing him for the same length of time would not? See *United States* v. *Knotts*, 460 U. S. 276, 281–283 (1983). Why is Location History data Mr. Chatrie voluntarily shared with Google not "truly shared" when a person's bank records are? See *Miller*, 425 U. S., at 440–443. Does the Court just mean to give *Katz*'s third party doctrine a quiet burial by suggesting today that any information shared over "smartphones" using "apps and services" falls outside its reach? *Ante*, at 637 (internal quotation marks omitted). And what does any of this have to do with the Fourth Amendment's terms anyway? Even if *Katz* and its battered third party doctrine may straggle on today, they leave our Fourth Amendment jurisprudence about where the Court's obscenity doctrine stood in the 1960s: We know a "reasonable expectation of privacy" (and an exception to the third party doctrine) when we see it.

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II

Rather than employ *Katz* and its third party doctrine, I would take a different approach. To decide whether the Fourth Amendment is in play, I would consult its terms, asking first whether Location History qualifies as one of Mr. Chatrie's papers or effects, and then asking whether the government searched those papers or effects. This traditional approach remains very much part of our law. See *Byrd* v. *United States*, 584 U. S. 395, 403 (2018). Indeed, we have expressly recognized that *Katz* and its progeny "supplemen[t] rather than displac[e]" traditional Fourth Amendment principles. *Byrd*, 584 U. S., at 403; see also *Soldal* v.

Cook County, 506 U. S. 56, 64–65 (1992); *United States* v. *Jones*, 565 U. S. 400, 406–407 (2012); *Florida* v. *Jardines*, 569 U. S. 1, 11 (2013).

Thanks to *Katz*'s prominence today, of course, litigants sometimes fail to press more traditional Fourth Amendment arguments. See, *e. g.*, *Carpenter*, 585 U. S., at 406 (GORSUCH, J., dissenting). But whatever his faults (possibly including bank robbery), Mr. Chatrie has not forfeited that line of attack in this case. In fact, he begins his brief before us by contending that the Fourth Amendment is implicated here precisely because the government enlisted Google to search his "papers and effects." See Brief for Petitioner 15, 33.

I agree with that assessment. Set aside whether Location History data qualifies as among Mr. Chatrie's "papers," and consider whether it at least constitutes one of his "effects." Based on the evidence the parties have put before us, it appears the word "effects" was understood at the time of the Fourth Amendment's adoption to embrace most any kind of personal property. See, *e. g.*, M. Brady, The Lost "Effects" of the Fourth Amendment: Giving Personal Property Due Protection, 125 Yale L. J. 946, 985–987 (2016) ("[E]arly sources indicate that the term 'effects' meant 'personal property' in common and colloquial usage"); L. Donohue, The Original Fourth Amendment, 83 U. Chi. L. Rev. 1181, 1301 (2016) (effects meant "personal property or possessions," including "commercial items and goods"); Brief for United States 32 (suggesting that "effects" excludes certain real property like so-called open fields (citing *Oliver* v. *United States*, 466 U. S. 170 (1984))).

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As I see it, Mr. Chatrie's Location History data qualifies as his personal property. To appreciate why, start with this. As Google puts it, and no one seriously disputes, Location History serves as a "diary" or map "of a person's travels." Brief for Google LLC as *Amicus Curiae* 3–4. At the time of the events in question, Mr. Chatrie's agreement with

Google referred to Location History as "*your*" (meaning, the user's) "information." 1 App. 72 (emphasis added). Under the parties' agreement, too, Mr. Chatrie was free to "review" and "edit" his location data. *Id.*, at 19. He was even free to export or delete that data "from Google's servers at will." *Ibid.* Beyond all that, Google promised to protect his information against "unauthorized access, alteration, disclosure, or destruction." *Id.*, at 71. Put simply, Mr. Chatrie had the rights to enjoy, manage, alter, dispose, and exclude others from what amounted to an electronic diary or map of his travels. And as someone who held that many "sticks in the bundle of rights . . . commonly characterized as property"—including the "most treasured" and "essential" right to exclude—he has a strong claim that the Location History data was his personal property. *Cedar Point Nursery* v. *Hassid*, 594 U. S. 139, 149–150 (2021) (internal quotation marks omitted).

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Next, notice what statutory and case law have to say on the subject. The investigation of Mr. Chatrie unfolded in Virginia. That State's Computer Crimes Act expressly describes "computer data" as a form of "[p]roperty." Va. Code Ann. §18.2–152.2 (2021). Altering or making an unauthorized copy of computer data can constitute the crime of "computer trespass" (another property law concept). §§18.2–152.4(A)(3), (6). And the State provides a right to sue for anyone "whose property or person is injured" by violations of the Act (again suggesting a right to exclude). §18.2–152.12(A).

Nor is Virginia some outlier. In Texas, "computer . . . data" can constitute "[p]roperty." Tex. Penal Code Ann. §33.01(16) (West Cum. Supp. 2025). State law likewise criminalizes "knowingly access[ing] . . . a computer, computer network, or computer system . . . with the intent to obtain or use a file, data, or proprietary information" for a prohibited purpose. §33.02(b–1)(2)(C) (West 2016). Once more, as well, those whose "property has been injured" by

certain computer crimes may bring a "civil cause of action." Tex. Civ. Prac. & Rem. Code Ann. §143.001 (West 2019). Georgia has a similar regime. See Ga. Code Ann. §§16–9–93(b), (g) (2018) (criminalizing "[c]omputer [t]respass" and providing a private right of action for such violations). And, it appears, so do many other States. See Brief for Cato Institute as *Amicus Curiae* 14–15, and n. 5 ("Today, more than half of states . . . treat digital records and data as personal property," and "[m]any" of them "make it illegal for private actors to access or convert another person's digital data"); see also, *e. g.*, *People* v. *Seymour*, 536 P. 3d 1260, 1273 (Colo. 2023) (finding that "law enforcement's copying of [the defendant's] search history meaningfully interfered with his possessory interest in that data"); *Integrated Direct Marketing, LLC* v. *May*, 2016 Ark. 281, p. 6, 495 S. W. 3d 73, 76 ("[U]nder Arkansas law, intangible property, such as electronic data, . . . can be converted"); cf. *Thyroff* v. *Nationwide Mut. Ins. Co.*, 8 N. Y. 3d 283, 292–293, 864 N. E. 2d 1272, 1278 (2007) (holding that "electronic records that were stored on a computer and were indistinguishable from printed documents" are "subject to a claim of conversion").

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To be sure, pursuant to its agreement with Mr. Chatrie, Google stored his Location History data on its servers and was free to use it for certain purposes. Brief for United States 34–36. But an individual need not have "complete ownership or exclusive control" before he can assert a Fourth Amendment challenge against the search of real property. *Carpenter*, 585 U. S., at 401 (GORSUCH, J., dissenting). Instead, we have long recognized, a "tenan[t] [or] resident family membe[r]" who does not enjoy "fee simple title" in a house has a sufficient interest in it to give rise to a Fourth Amendment right. *Ibid.* And I fail to see why the law should differ markedly when it comes to personal property. If you "[t]oss your keys to a valet at a restaurant" or "[a]sk your neighbor to look after your dog while you travel," you may entrust your personal property to another and li-

cense him to do certain things with it, much as Mr. Chatrie did with his Location History data. *Id.*, at 399. But that hardly means that property is no longer yours. *Ibid.*

Nor does it matter that those who wrote the Fourth Amendment might not have imagined an electronic diary or map of one's travels. As with other laws, the terms found in the Fourth Amendment carry their original public meaning and can bear more applications than its drafters might have expected or intended. See *id.*, at 400. So just as the First Amendment protects speech over the internet today no less than it did speech delivered in the town square in 1791, it should hardly come as a surprise that the Fourth Amendment might protect as personal "effects" electronic diaries of one's travels as it always has more traditional ones. See *Kyllo* v. *United States*, 533 U. S. 27, 40 (2001) (observing that a "search" of a home can take place not just by physical entry but also by the external use of thermal-imaging devices).

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Because Mr. Chatrie's Location History data is his effect, it is subject to the Fourth Amendment's restrictions when the government searches it. So, was there a search? The government conducts a search when it "'look[s] over or through for the purpose of finding something.'" *Id.*, at 32, n. 1 (quoting N. Webster, An American Dictionary of the English Language 66 (1828) (reprint 6th ed. 1989)). Under our precedents, none of which the government asks us to overrule, a search equally transpires when government officials enlist private parties in that task. See *Skinner* v. *Railway Labor Executives' Assn.*, 489 U. S. 602, 614 (1989) (Fourth Amendment "protects against" searches "effected" by a private party "if the private party acted as an instrument or agent of the Government"). And that's exactly what occurred here: The government conducted a search both when it compelled Google to rummage through Mr. Chatrie's data at "step one," and when it later examined that

data for itself and demanded more data yet from Google at "step two." See *ante*, at 616–617 (describing the step-wise process in which the searches were conducted in this case).

*

I might have hoped that the Court would have pursued a more traditional approach to the Fourth Amendment today. But look carefully and you will see hints of it at work even in the Court's opinion. Why is the Court so protective of Location History data, email, and electronically stored photos and calendars? See *ante*, at 633–635. Because, it turns out, "a user reasonably understands" all those things "as his own." *Ante*, at 634. Put another way, they are his effects. And why does the Court hold Mr. Chatrie's effects protected by the Fourth Amendment even though a third party stores them? Because, the Court says, those effects remain his "even though [they are] stored on Google's servers." *Ibid.* Put another way, entrusting your effects to a third party for certain agreed purposes doesn't mean they are no longer yours. While more work may lie ahead to bring coherence to our Fourth Amendment jurisprudence, perhaps this is a start.

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JUSTICE ALITO, with whom JUSTICE THOMAS joins as to Part I, and with whom JUSTICE BARRETT joins as to Parts II–B, II–C–1, and II–C–2, dissenting.

Eight years ago, I warned that this Court's decision in *Carpenter* v. *United States*, 585 U. S. 296 (2018), would produce one of two outcomes. Either the Court would need to clarify *Carpenter*'s limits in a future decision, or *Carpenter* would usher in "revolutionary developments" in our doctrine by giving criminal suspects a "protected Fourth Amendment interest in any sensitive personal information about them that is collected and owned by third parties." *Id.*, at 385 (ALITO, J., dissenting). Today, the Court takes

the country down the latter path. In doing so, the Court sheds *Carpenter*'s self-imposed boundaries and further destabilizes longstanding Fourth Amendment jurisprudence.

To make matters worse, the majority does all this in an advisory opinion. Although today's decision will send seismic waves through our Fourth Amendment doctrine, not one iota of the majority opinion will affect the outcome of this case. The Court knows this and does not claim otherwise. Indeed, by refusing to review the one question that could have at least theoretically given Chatrie some hope of relief, the Court carefully set the stage for its planned performance: striking a pose as a great champion of privacy in the digital age. I cannot support this irresponsible escapade.

I

The Court should not have granted certiorari in this case, and under any faithful application of our precedents, it should now either dismiss this petition or affirm the decision below based on the "good-faith exception" to the exclusionary rule. Instead, the Court issues an advisory opinion concerning a now-obsolete "geofence" procedure. Last Term, the Court worried out loud about rushing in to judge "new technologies with transformative capabilities" that we barely understand. *TikTok Inc.* v. *Garland*, 604 U. S. 56, 62 (2025) (*per curiam*). In cases involving such technology, the Court proclaimed, we should take care not to "'embarrass the future.'" *Ibid.* (quoting *Northwest Airlines, Inc.* v. *Minnesota*, 322 U. S. 292, 300 (1944)). Today, the Court exhibits no such modesty.

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A

It has long been established that federal courts may not issue "advisory opinions" that do not bear on the rights of the litigants before them. *Lewis* v. *Continental Bank Corp.*, 494 U. S. 472, 477 (1990). At the appellate stage, this principle means that courts should resolve only those questions on which a favorable ruling would provide a litigant redress

from the judgment below. See *Food Marketing Institute* v. *Argus Leader Media*, 588 U. S. 427, 432–433 (2019). The question on which the Court granted certiorari in this case cannot satisfy this requirement under any colorable view of the law. The Court should therefore decline to answer it.

Okello Chatrie's ongoing stake in this case stems from his conviction for robbing a bank and brandishing a firearm. On appeal, Chatrie challenged those convictions on only one ground. He argued that the District Court erred in denying his motion to suppress the fruits of the geofence procedure that led to his identification as the bank robber.[1] So, unless he can show that this evidence should be suppressed, he cannot obtain any relief. And his chances of making the showing needed to justify suppression are virtually zero.

The police obtained information about Chatrie's location at the time of the robbery pursuant to a warrant issued by a neutral magistrate. And when evidence is obtained under such a warrant, a defendant seeking suppression must overcome the good-faith exception to the exclusionary rule. *United States* v. *Leon*, 468 U. S. 897, 923 (1984). A majority of the Court of Appeals for the Fourth Circuit, sitting en banc, held that Chatrie could not do so. 136 F. 4th 100, 101 (2025) (Diaz, C. J., concurring); *id.*, at 114 (Niemeyer, J., concurring); *id.*, at 115 (King, J., concurring); *id.*, at 115, n. 1 (Wynn, J., concurring in judgment); *id.*, at 142 (Heytens, J., concurring). That holding suffices to affirm the District Court's admission of the geofence evidence and thus independently supports the Fourth Circuit's judgment. Accord-

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[1] The majority characterizes the issue as whether the Government may introduce the location information that the police obtained through the geofence procedure. But Chatrie also sought to suppress all the fruits of that location information, and these could potentially include a firearm matching one used in the crime, nearly $100,000 of currency in bands bearing the bank teller's signature, and his confession to the crime. See Defendant's Motion to Suppress in No. 3:19–cr–00130 (ED Va.), ECF Doc. 29; Statement of Facts, ECF Doc. 229, p. 3.

ingly, any review by this Court should concern an issue that could at least plausibly disturb that good-faith holding. Cf. *Stewart* v. *IHT Ins. Agcy. Group, LLC*, 990 F. 3d 455, 457 (CA6 2021).

On this score, today's decision fails. The majority does not dispute the Fourth Circuit's good-faith analysis, and nothing in its opinion casts a shred of doubt on that holding. See *ante*, at 619, n. 4. To overcome the good-faith exception, Chatrie would need to show that either (1) the affidavit supporting the geofence warrant was knowingly or recklessly false, (2) the magistrate rubber-stamped the warrant application, (3) the affidavit was "'bare bones,'" or (4) the warrant application was so facially deficient that no reasonable officer would rely on it. *Leon*, 468 U. S., at 923, and n. 24. Yet nothing in the majority opinion touches on any of these matters. Thus, nothing in today's decision bears on the Fourth Circuit's good-faith holding. And because that holding independently supports the judgment below, the Court's opinion is advisory.[2]

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[2] I do not contend that the Court lacks Article III jurisdiction over this case as a formal matter. Chatrie's conviction suffices to render this litigation a "case or controversy," regardless of the question on which the Court granted certiorari. The majority opinion is nonetheless advisory—not because I think "the odds are strong" that Chatrie will lose on remand, contra, *ante*, at 619, n. 4, but because the majority opinion does not disturb the basis for the Fourth Circuit's judgment and thus Chatrie's conviction. This Court's longstanding policy against issuing advisory opinions on constitutional issues is not limited to cases where we lack jurisdiction. See, *e. g.*, *Rescue Army* v. *Municipal Court of Los Angeles*, 331 U. S. 549, 568 (1947) (holding that the Court possessed jurisdiction over a case but nonetheless declining to exercise it because the Court's policy against issuing gratuitous constitutional opinions "has not been limited to jurisdictional determinations"); *Liverpool, New York & Philadelphia S. S. Co.* v. *Commissioners of Emigration*, 113 U. S. 33, 39 (1885) ("In the exercise of [its] jurisdiction, [this Court] is bound . . . never to anticipate a question of constitutional law in advance of the necessity of deciding it"). An opinion composed exclusively of dicta is no less advisory simply because the Court has jurisdiction to pronounce such dicta.

This outcome was guaranteed as soon as this Court granted certiorari. When seeking review in this Court, Chatrie recognized that dislodging the Fourth Circuit's judgment required that he prevail on the good-faith issue, so his petition asked us to alter the good-faith exception. See Pet. for Cert. i, 34–37 (asking the Court to create a carve-out to the good-faith exception). Yet the Court excluded the good-faith issue from its grant of certiorari, 607 U. S. 1148 (2026), ensuring that any opinion would be advisory. Indeed, even if the Court were to decide that the warrant in this case was deficient, there would be no colorable argument on remand that all reasonable officers would have correctly predicted that outcome. See *Leon*, 468 U. S., at 923. After all, this Court has never provided guidance on how to apply the Warrant Clause when the police request geolocation data from a third party. See *Carpenter*, 585 U. S., at 316–320 (noting only that such a warrant requires probable cause). Accordingly, it would be nearly impossible for Chatrie to prove that the police here (and, by extension, every other officer who ever relied on this type of geofence warrant) acted in bad faith. See *Davis* v. *United States*, 564 U. S. 229, 240 (2011) (Fourth Amendment violations "trigger the harsh sanction of exclusion only when they are deliberate . . . and culpable"). In sum, no resolution of the question on which the Court granted certiorari could have disturbed the Fourth Circuit's good-faith holding and, thus, its judgment.

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The Court therefore erred by granting certiorari, and we should now dismiss this petition as improvidently granted. See *Conway* v. *California Adult Authority*, 396 U. S. 107, 110 (1969) (*per curiam*) (dismissing when resolving the issue addressed in the petition would produce an advisory opinion). Alternatively, this Court could affirm the decision below on good-faith grounds. Although the Court did not grant certiorari on this question, we may affirm a judgment on any ground supported by the record, and we would not be the court of "first view" on the good-faith issue. *Upper*

Skagit Tribe v. *Lundgren*, 584 U. S. 554, 560–561 (2018). The Government properly presented this issue below, the District Court admitted the contested evidence on good-faith grounds, a majority of the en banc Fourth Circuit voted to affirm on that basis, and the Government continued to press good faith at the petition and merits stages in this Court. See Government's Response in Opposition to Defendant's Motion for Suppression, ECF Doc. 41, p. 21; 590 F. Supp. 3d 901, 937 (ED Va. 2022); Brief in Opposition 13; Brief for United States 47–48. This Court therefore has every reason to affirm on that ground.

Instead, the Court charges forward to decide the question presented, even though the majority cannot discern any impact that its decision has on the Fourth Circuit's judgment. See *ante*, at 619, n. 4. The majority thus issues a plainly advisory opinion, violating this Court's "oldest and most consistent" justiciability rule. *Flast* v. *Cohen*, 392 U. S. 83, 96 (1968) (internal quotation marks omitted).

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B

Advisory-opinion concerns aside, our prudential certiorari considerations further counseled against granting certiorari. Writs of certiorari are discretionary, and we reserve them for "compelling" cases in which the court below "has decided an important question of federal law." This Court's Rule 10. The question in this case does not qualify.

Chatrie's petition asked whether the geofence procedure that the police used here comports with the Fourth Amendment. The answer to this question has scarcely any ongoing significance. Google, the Government, and the majority all agree that Google has modified its Location History service in a manner that forecloses future use of this geofence procedure. *Ante*, at 614, n. 2; Brief for Google LLC as *Amicus Curiae* 2; Brief for United States 42, n. 3. Chatrie does not offer any evidence to the contrary. See Tr. of Oral Arg. 17–18; Brief for Petitioner 5; Pet. for Cert. 10–11. As a result,

Fourth Amendment challenges to this geofence procedure will likely pass into obscurity soon.

This Court has long been averse to granting certiorari on questions "that time [will] soon bury." *Darr* v. *Burford*, 339 U. S. 200, 227 (1950) (Frankfurter, J., dissenting). This aversion applies with special force here given this case's subject matter. The Fourth Amendment's application to surveillance technology turns on the "unique nature" of the technology involved and the way in which the police use it to collect information. *Carpenter*, 585 U. S., at 309. For instance, when determining whether law enforcement's use of a technology requires a warrant or is otherwise "unreasonable," this Court has considered the technology's capabilities, prevalence, costliness, conspicuousness, intrusiveness, precision, accuracy, security, and comprehensiveness. See, *e. g.*, *Kyllo* v. *United States*, 533 U. S. 27, 34–35 (2001); *United States* v. *Jones*, 565 U. S. 400, 429–431 (2012) (ALITO, J., concurring in judgment); *Maryland* v. *King*, 569 U. S. 435, 446–465 (2013); *Birchfield* v. *North Dakota*, 579 U. S. 438, 461–464 (2016); *Carpenter*, 585 U. S., at 310–313. Because these qualities vary from one technology to the next, the specific application of the Fourth Amendment does as well. Such variability renders this case all the less suitable for our review. Whatever one's jurisprudential views about the Fourth Amendment in the digital age, a case concerning a now-obsolete geofence procedure is an odd vehicle for pronouncing them.

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None of this is to say that today's decision will be inconsequential. As the majority works its way through the question in this case, it makes sweeping proclamations with implications far beyond the specific procedure that the police used here. But this fact only underscores the advisory nature of today's decision. The majority has candidly little to say about the relevance of its decision for Chatrie's conviction. *Ante*, at 619, n. 4. Instead, the Court uses this case as a vehicle to once again "make a statement about privacy in the digital age." See *Carpenter*, 585 U. S., at 386 (ALITO, J.,

dissenting). Because that function is not a proper use of this Court's certiorari docket, we should not have granted this petition and should now dismiss it.

II

The Court's resolution of the merits of this case is equally flawed. Applying the Fourth Amendment to 21st-century investigation methods is undoubtedly an important and challenging task, and the Court ought to proceed cautiously. Yet the majority, faced with only countervailing authority in the first two centuries of this Court's case law, relies almost exclusively on our decision in *Carpenter*. And rather than moderate *Carpenter*'s departures from long-established Fourth Amendment law, the majority propels that decision's disruption to new heights.

A

If the Court were to apply the Fourth Amendment as understood for the first century of this Nation's history, we would find no "search" of Chatrie's papers or effects, much less an "unreasonable" one. Until the last decades of the 19th century, the Search and Seizure Clause protected only the physical security of one's person and property, and document-production orders were not understood to be "searches." See *Katz* v. *United States*, 389 U. S. 347, 367–374 (1967) (Black, J., dissenting); *Carpenter*, 585 U. S., at 348–357 (THOMAS, J., dissenting); *id.*, at 363–372 (ALITO, J., dissenting). Under those principles, Chatrie's arguments are meritless.

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To illustrate this point, imagine that Chatrie spent his free time taking road trips across the United States. And suppose that he entered into a contract with a travel agency, under which the agency would provide him valuable information about places to visit and activities to try as he traveled from place to place. Suppose that the contract, in exchange for these services, authorized the travel agency to maintain a detailed chronicle of Chatrie's adventures and to use that

information to develop its business, expand its offerings, and advertise to prospective customers. If a grand jury had subpoenaed the travel agency for the records of Chatrie's travels, he would have no basis to object on search-and-seizure grounds. At least through the late 19th century, compelled document-production orders were simply not "searches."

Likewise, until *Carpenter*, this Court held that the Fourth Amendment protected a person's security in only his own papers and effects, not those of a third party. *Carpenter*, 585 U. S., at 328 (Kennedy, J., dissenting); *id.*, at 342 (THOMAS, J., dissenting); *id.*, at 379–385 (ALITO, J., dissenting). Chatrie's claim would therefore fail for a second reason: He possesses no property interest in the information that Google conveyed to the police. To be sure, Chatrie claims a property right in Google's Location History files under a bailor-bailee relationship, and he claims that the execution of the geofence procedure transgressed those rights. This argument radically reconceptualizes the traditional understanding of property rights. Cf. C. Reich, The New Property, 73 Yale L. J. 733 (1964). And even if Chatrie possessed a property right in the Location History files on Google's servers, the conduct of the police in this case did not infringe that right. The geofence procedure did not give the police access to the Location History files themselves. Rather, Google used the information contained in those files to generate a spreadsheet that summarized objective, historical facts about Chatrie's (and others') location in the hour before and hour after the robbery. See Decl. of S. Rodriguez, ECF Doc. 96–2, pp. 2–3; 107 F. 4th 319, 324 (CA4 2024). The police sought and obtained those historical details, not the files on Google's servers. And whatever property rights Chatrie might have in the Location History files, he does not "own" historical facts about his movements in a given hour. If Chatrie, instead of using Location History, had written and copyrighted a private memoir about his crimes, he would

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not have a Fourth Amendment claim if the police asked a proofreader whether Chatrie was at the credit union during the robbery. Cf. *International News Service* v. *Associated Press*, 248 U. S. 215, 234 (1918) (distinguishing between having a property interest in a newspaper article and having a property interest in the historical facts set forth in the article). Chatrie therefore cannot show that the police here transgressed any rights in his papers or effects.

In short, under traditional search-and-seizure principles, Chatrie could not challenge the geofence procedure here under the Fourth Amendment.

B

1

In the 20th century, this Court expanded its Fourth Amendment doctrine to protect more than the physical security of one's person and property. Beginning in *Katz*, the Court held that the Fourth Amendment also protects a person's "reasonable expectation of privacy" from government intrusions. 389 U. S., at 360 (Harlan, J., concurring); see also *id.*, at 351–353 (majority opinion).

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Whatever one thinks of *Katz*'s expansion of Fourth Amendment doctrine, this Court at least had the prudence to tread cautiously when implementing that expansion. Indeed, the Court spent much of the 20th century emphasizing the limits of *Katz*'s reach. For instance, the Court held that *Katz* did not require the police to obtain a warrant for visual or physical surveillance outside a house's curtilage. *Oliver* v. *United States*, 466 U. S. 170, 178 (1984). Nor could a defendant generally claim an "expectation of privacy" in someone else's home, his own public travels, his face-to-face conversations with another person, or information that he shared with a business. *Minnesota* v. *Carter*, 525 U. S. 83, 89–91 (1998); *United States* v. *Knotts*, 460 U. S. 276, 281–282 (1983); *United States* v. *White*, 401 U. S. 745, 751–752 (1971) (plurality opinion); *Smith* v. *Maryland*, 442 U. S. 735, 744

(1979). If *Katz* ushered in a revolution in Fourth Amendment doctrine, the Court was quick to cabin its impact. See also *New York* v. *Burger*, 482 U. S. 691, 693, 700 (1987) (holding that *Katz* does not require a warrant for inspections of "pervasively regulated industries"); *California* v. *Greenwood*, 486 U. S. 35, 40–41 (1988) (holding that *Katz* does not protect privacy interests in household garbage left curbside); *California* v. *Ciraolo*, 476 U. S. 207, 213–215 (1986) (holding that *Katz* does not require a warrant for aerial surveillance).

Similarly, even after *Katz*, the Court recognized that legislatures still bore primary responsibility for regulating the use of new technologies and investigation methods. Thus, when legislatures developed reasonable schemes to administer such activities, the Court was reluctant to constitutionalize additional rules. See, *e. g.*, *Camara* v. *Municipal Court of City and County of San Francisco*, 387 U. S. 523, 534–539 (1967) (upholding the constitutionality of a search conducted pursuant to "reasonable legislative or administrative standards"); *King*, 569 U. S., at 465 (holding that a DNA collection scheme was constitutional in part because state statute regulated how records could be used); see also *Burger*, 482 U. S., at 707–711 (allowing warrantless inspections pursuant to a regulatory scheme designed to combat modern problems with car theft). As much as *Katz* reflected a departure from traditional Fourth Amendment rules, this Court's decisions made clear that it was a measured one.[3]

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2

The geofence procedure in this case did not violate Chatrie's Fourth Amendment rights under these 20th-century precedents. These precedents hold that a defendant does not have a reasonable expectation of privacy in records that

[3] Contrary to the Court's characterization of my argument, *ante*, at 620, n. 5, my purpose in recounting the developments in this Court's post-*Katz* case law is to contrast the Court's modesty during that period with its maximalist extension of *Carpenter* today.

a company generates by virtue of the defendant's use of its services. This rule has come to be known as the third-party doctrine. The Court articulated this rule in *United States* v. *Miller*, 425 U. S. 435 (1976), holding that the police did not violate a defendant's Fourth Amendment rights when they obtained transaction records from his bank. In reaching this conclusion, *Miller* emphasized that a bank is not merely a neutral custodian of its customers' financial information, but rather a party to an ongoing business relationship with them. *Id.*, at 440–441. Thus, when the defendant "voluntarily conveyed" his financial information to a bank by depositing money or cashing checks, he assumed the risk that the bank would create a paper trail of that information for its own business purposes. *Id.*, at 442. The defendant likewise assumed the risk that the bank might share that information with others, including the police. *Ibid.* The Court therefore held that the defendant had no Fourth Amendment rights in the bank's records of his transactions.

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What was true about the bank records in *Miller* is true about Location History here. Chatrie voluntarily conveyed his location information to Google, and Google created a digital paper trail of that information. Like the bank in *Miller*, Google was no neutral custodian in this arrangement. *Id.*, at 440. In exchange for allowing Chatrie to use its Location History service, Google could use his location information for its own business purposes, such as sending Chatrie location-targeted advertisements from third parties. 590 F. Supp. 3d, at 907–908. So, by giving Google his location information for its own use, Chatrie assumed the risk that Google might disclose location information to others, including the police. *Miller*, 425 U. S., at 443. Indeed, Google advises its users that the company could use their location information for its own advertising purposes and could share that information with law enforcement. *E. g.*, 1 App. 69–70. Thus, like the defendant in *Miller*, Chatrie cannot now claim a reasonable expectation of privacy in those data. The po-

lice therefore would not need a warrant to perform the geofence procedure under our 20th-century precedents.

C

1

Without any support in 19th- or 20th-century understandings of the Fourth Amendment, Chatrie and the majority rely primarily on this Court's decision in *Carpenter*. *Carpenter* held that the police must obtain a warrant before ordering a cellular carrier to provide more than six days of cell-site records about a customer (*i. e.*, information about the specific cell towers to which a cell phone connected). 585 U. S., at 315–316. Like *Katz*, *Carpenter* extended the Fourth Amendment's warrant requirement to encompass a category of government investigations that it had never previously covered. Before *Carpenter*, a criminal defendant who objected to police collection of cell-site records would have faced at least two legal hurdles: the historical distinctions between searches and subpoenas *duces tecum*, and the third-party doctrine. *Carpenter*, 585 U. S., at 361–362 (ALITO, J., dissenting). *Carpenter* thus reflected a "stark departure" from both traditional Fourth Amendment principles and this Court's 20th-century doctrine. *Id.*, at 321 (Kennedy, J., dissenting).

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Nonetheless, *Carpenter* maintained that its departure from these doctrines was "narrow." *Id.*, at 316 (majority opinion). The question presented in *Carpenter* was whether the Fourth Amendment allows "the warrantless seizure and search of historical cell phone records revealing the location and movements of a cell phone user over the course of 127 days," Pet. for Cert. in *Carpenter* v. *United States*, O. T. 2017, No. 16–402, p. i, and the Court purported to resolve no more than the question before it, 585 U. S., at 316, and n. 4. *Carpenter*'s analysis likewise anchored itself in the "unique nature" of the particular cell-site records that the police had collected in that case. *Id.*, at 315. In "declin[ing] to ex-

tend" the third-party doctrine to weeks-long cell-site records, *Carpenter* highlighted various aspects of that dataset that, in the majority's view, afforded the defendant a stronger expectation of privacy than the defendants in our earlier third-party precedents. *Ibid.*

Three of those aspects—duration, comprehensiveness, and voluntariness—deserve mention here. First, unlike traditional police-surveillance techniques, the dataset in *Carpenter* captured the "whole of [a person's] physical movements" over 127 days, violating Americans' reasonable expectation that they would not be "secretly monitor[ed]" for a "very long period." *Id.*, at 310 (internal quotation marks omitted). Second, the dataset gave the police an "all-encompassing record" of the defendant's whereabouts that tracked him "beyond public thoroughfares and into private residences . . . and other potentially revealing locales." *Id.*, at 311. Third, the Court determined that cell-phone users do not "voluntarily" share their cell-site information with cellular carriers in the same way that the defendant in *Miller* voluntarily conveyed his transaction information to a bank. *Carpenter*, 585 U. S., at 315. The Court reasoned that because cell phones are "indispensable to participation in modern society" and "[v]irtually any activity on [a] phone" generates cell-site records, a person has no practical choice but to constantly convey this information to third parties. *Ibid.* Based on these aspects of the dataset at issue, *Carpenter* concluded that the defendant had a strong enough privacy expectation that the rationale undergirding our third-party case law did not apply. *Id.*, at 314–315. *Carpenter* therefore held that the police needed a warrant to obtain seven or more days of cell-site records from a cellular carrier. *Id.*, at 310, n. 3, 316.

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Carpenter did not require the police to obtain a warrant for the geofence procedure here. By its own terms, *Carpenter*'s holding was keyed to the "unique nature" of the cell-

site records in that case. *Id.*, at 309, 315. *Carpenter* expressly left open the question whether the police would need a warrant for location data spanning less than a week, as is the case with the data here. *Id.*, at 310, n. 3. *Carpenter* likewise declined to address situations where the police request information about all devices in a given area at the time of a crime (*e. g.*, a geofence procedure), as opposed to continuous location information about one specific device. *Id.*, at 316. For this reason alone, *Carpenter* does not dictate an outcome here.

Nor does *Carpenter*'s reasoning justify extending its holding to this case. Here, the police requested two pieces of information that could implicate Chatrie's Fourth Amendment interests: (1) whether he was within 150 meters of the credit union during the robbery, and (2) if he was, where he traveled during the 1-hour periods immediately before and afterward. Along three of the dimensions that *Carpenter* found relevant, Chatrie has a far lesser privacy interest in this information than the defendant did in the records at issue in that case. The third-party doctrine therefore controls.

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First, unlike the data collection in *Carpenter*, the geofence procedure in this case did not risk uncovering the "whole of [someone's] physical movements." 585 U. S., at 310. In contrast to the 127 days of cell-site records in *Carpenter*, the request made by the police here spanned just two hours.[4] Until today, this Court had recognized a Fourth Amendment difference between tracking a person's movements for a "brief stretch" and cataloging them for an "'extended period of time.'" *Ibid.*; *Jones*, 565 U. S., at 430 (opinion of ALITO, J.). Although it might be difficult to "identify with precision" the dividing line between these two durations, a 2-hour

[4] In accurately noting that the data at issue in *Carpenter* spanned 127 days, I do not dispute that *Carpenter* drew the constitutional line at seven days. It is the majority that eschews *Carpenter*'s 7-day line. *Ante*, at 627–632.

stint of location tracking is "surely" too limited to constitute the "all-encompassing record" that triggered heightened privacy concerns in *Carpenter*. *Jones*, 565 U. S., at 430 (opinion of ALITO, J.); *Carpenter*, 585 U. S., at 311.

Second, the limited geofence procedure here was far less likely to open "an intimate window" into Chatrie's "'familial, political, professional, religious, and sexual associations'" than was the chronicle that the police obtained in *Carpenter*. *Id.*, at 311. Whereas the procedure in *Carpenter* gave the police a comprehensive log of the defendant's movement everywhere he went, the geofence's boundaries here centered on a credit union,[5] a public place where individuals lack a reasonable expectation of privacy.[6] Cf. *Miller*, 425 U. S., at 442–443 (holding that a person has no expectation of privacy in his dealings with a bank); *Knotts*, 460 U. S., at 281–282 (holding that a person has no expectation of privacy in his travels through public places). To be sure, the geofence procedure also captured some people's movements outside the geofence in the hour before and after they visited the credit union, and it is feasible that some people might have traveled to a private location during that window. But the incidental acquisition of such information through otherwise-permissible surveillance does not violate Chatrie's Fourth Amendment rights. *Id.*, at 282 (holding that no search of

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[5] The geofence also encompassed a nearby church, but Chatrie has not claimed an expectation of privacy in that church. The church therefore has no bearing on whether the geofence procedure in this case violated *his* Fourth Amendment rights, and Chatrie may not vicariously assert others' rights in support of his suppression motion. See *Rakas* v. *Illinois*, 439 U. S. 128, 148–150 (1978).

[6] The majority correctly notes that under my interpretation of *Carpenter*, the police could use a geofence procedure without obtaining a warrant in many situations. *Ante*, at 631–632, n. 10. Contrary to the majority's suggestion, however, that fact does not mean that geofence procedures would lack any limits. Under *Carpenter*, if the police request and obtain sensitive, involuntarily collected location information that spans a week or more, they would still require a warrant.

the defendant occurred when a police beeper monitored his travel from a public place to his private residence). Moreover, if the geofence procedure uncovered information about Chatrie's movements within a private location, the proper solution would be to suppress that information, rather than the fruits of the entire procedure. See *United States* v. *Karo*, 468 U. S. 705, 720–721 (1984) (holding that location information from one leg of a defendant's journey in private places was the fruit of an unconstitutional search but upholding the use of location information from a different leg of that journey in nonprivate places).

Third, unlike the generation of cell-site records, the creation of Location History data is voluntary and not integral to a cell phone's functionality. Cell-site records are the byproduct of every phone interaction with a cell tower and thus an unavoidable consequence of sending text messages, making phone calls, or connecting to the internet. *Carpenter*, 585 U. S., at 315. A person can avoid creating those records only by forgoing all use of a cell phone for these purposes, and doing so would render useless this "indispensable" component of modern life. *Ibid.* In contrast, users need not enable Location History for their phones to function as expected. That most Google accountholders carry on without using Location History is strong evidence that the service is not a "pervasive and insistent part of daily life" in the way that creating cell-site records is. *Ibid.* (internal quotation marks omitted); see *ante*, at 635.

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Thus, on the criteria that *Carpenter* found relevant in determining whether to apply the third-party doctrine, Chatrie has a far lesser privacy interest in the data that the police sought here. For that reason, I would not extend *Carpenter* here, and I would hold that the police did not need a warrant.

3

The majority reaches the opposite outcome, and in doing so, it announces a new rule of Fourth Amendment law: The

police must obtain a warrant every time they access *any* cellphone location information from a third party, however brief the duration, however innocuous the request, and however voluntarily that information was disclosed by the user. *Ante*, at 637–638. This rule significantly extends *Carpenter* and repudiates the boundary lines that *Carpenter* drew to distinguish its novel holding from longstanding doctrine. Whereas *Carpenter* rested its holding on the difference between obtaining a "brief stretch" of location information and receiving a chronicle spanning a week or more, 585 U. S., at 310, 315, the majority holds that the police need a warrant regardless of the duration of the data sought, *ante*, at 627–632. Whereas *Carpenter* rested its holding on the concern that an all-encompassing dataset would reveal a defendant's presence in sensitive locations, 585 U. S., at 311, the majority holds that the police need a warrant regardless of whether a geofence captures any sensitive locations, *ante*, at 631–632. Whereas *Carpenter* rested its holding on the near-universal use of cellphones and the unavoidability of generating cell-site records, 585 U. S., at 315, the majority holds that the police need a warrant regardless of how widespread a technology is or how feasibly users may opt out, *ante*, at 635–637. Now, we are told, all that matters is whether a given investigative procedure enables the police to obtain location information easily using a technology that did not exist in "an earlier age." *Ante*, at 625–627. If so, the police need a warrant.

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This unshackling of *Carpenter* will unleash the very upheaval in Fourth Amendment law that *Carpenter* disclaimed. See 585 U. S., at 319 (stating that its holding would apply "only . . . in the rare case"). Today's decision makes clear that the last two centuries of Fourth Amendment search doctrine simply do not apply to digital-age methods of tracking a suspect's location. And although the Court frames its holding as concerning only "location information," *ante*, at 638, that qualification "might as well be written on the dissolving paper sold in magic shops," *Fulton* v. *Philadelphia*,

593 U. S. 522, 551 (2021) (ALITO, J., concurring in judgment). If past is prologue, the parchment limits on today's holding will fade away just as quickly as *Carpenter*'s have.

4

In support of its sweeping conclusion, the majority argues that a duration-based or procedure-by-procedure approach to the Fourth Amendment would generate a "host of line-drawing questions." *Ante*, at 630, n. 9; see also *ante*, at 636–637. I do not disagree, but those questions are the inevitable byproduct of the lines that *Carpenter* drew when it distinguished away longstanding doctrine. See 585 U. S., at 322, 339 (Kennedy, J., dissenting) (explaining that *Carpenter* drew an "unprincipled and unworkable line" and imposed an "arbitrary 6-day cutoff"). Indeed, the majority's rejection of such line-drawing only betrays its expansion of *Carpenter*'s holding.

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In any event, the majority's approach creates its own share of line-drawing problems. What dividing line can explain why a defendant has a reasonable expectation of privacy in his cell-phone location information but not in his bank records? See *Miller*, 425 U. S., at 442–443. Debit and credit cards might be viewed as comparably "indispensable to participation in modern society," and their use creates a detailed paper trail. *Carpenter*, 585 U. S., at 315. As a result, modern bank records contain similarly comprehensive accounts of Americans' private lives, including "the political and religious organizations to which they donate; whether they have visited a psychiatrist, plastic surgeon, abortion clinic, or AIDS treatment center; [and] whether they go to gay bars or straight ones." *Id.*, at 337 (Kennedy, J., dissenting). But as long as *Miller* remains good law, see *Carpenter*, 585 U. S., at 316 (majority opinion), the Fourth Amendment does not require the police to obtain a warrant for these records.[7]

[7] One is left wondering on which side of the line location data from a mobile-payment service like Apple Pay falls.

More broadly, where does the boundary between *Carpenter* and the third-party doctrine lie after today? *Carpenter* gave "courts and law enforcement officers no indication how to determine whether any particular category of information falls" on the *Carpenter* or *Miller* side of the line, and today's decision does no better. *Carpenter*, 585 U. S., at 340 (Kennedy, J., dissenting). Do the police need a warrant to obtain a person's Amazon purchase history? What about a person's Google search history or Venmo transaction log? Those kinds of information fall squarely within the third-party doctrine, and today's holding about "cell phone location information" does not ostensibly disturb that fact. *Ante*, at 638 (internal quotation marks omitted). At the same time, those data can paint a similarly detailed picture of a person's private life, and law enforcement had no easy way to obtain this information in "an earlier age."[8] *Ante*, at 626. If the Court maintains its unwillingness to engage with such "line-drawing questions," *ante*, at 630, n. 9, *Carpenter*'s warrant requirement might soon come for all forms of digital surveillance.

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In *Carpenter*, I worried that we might be "picking up the pieces" of our Fourth Amendment doctrine for a long time to come. 585 U. S., at 362 (dissenting opinion). Today's decision all but guarantees that we will be cleaning up debris for the foreseeable future.

JUSTICE BARRETT, dissenting.

I have no quarrel with *Carpenter* v. *United States*, 585 U. S. 296 (2018), or with the Court's decision to grant certio-

[8] Moreover, it is common these days for a single company, such as Google, to offer cellular plans, provide location services, maintain payment systems, host shopping platforms, and more. Companies have incentives to aggregate a user's data across these services, and this tendency will further complicate any efforts to draw Fourth Amendment lines among different sorts of third-party records.